DIVISION BENCH **ITEM NO.104**

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CA No. 28/2023 IN CP (CAA) No. 05/ALD/2023 IN CA (CAA) No. 9/ALD/2022

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 18th October, 2023

Attendance-Cum-Order Sheet of the Hearing

NAME OF THE COMPANY	**EPACK COMPONENTS PVT. LTD. WITH EPACK DURABLE PVT. LTD.**
UNDER SECTION	**SEC. 230/232 OF COMPANIES ACT 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Saurabh Khanna, Adv. *: For the Petitioner in main CP & Applicant in CA No.28/2023*

Sh. Ajeet Kumar Singh, AOL : *For the OL, Alld./RD (NR)*

Sh. Shivendra Bahadur, CGSC. : *For the RoC*

Sh. Niraj Kr., Proxy for Sh. Gaurav Mahajan, Sr. S.C. : *For the I.T. Department*

ORDER

Ld. Counsels representing their respective parties are present physically.

CA No. 28/2023

1. This application has been filed seeking amendment of the second motion petition, in view of the fact that the transferee company has changed its legal status from being a private limited to a public limited company.

2. Before moving of this amendment application, the notices were already issued in the original second motion petition vide order dated 30th May, 2023 to the concerned authorities i.e. Central Government, Officer Liquidator, Income Tax Authority and RD.

3. The paper publication was also directed to be made in the newspapers namely "Financial Express" in English and "Jansatta" in Hindi.

-Sd- ***-Sd-***

4. The Ld. Counsel representing the petitioner states that in pursuance of this notice dated 30th May, 2023, the copies of the Second Motion Petition were supplied to the concerned authorities and the affidavit of service was also filed. However, before making the paper publications as aforesaid, this amended application has been brought into for seeking amendment of the Second Motion Petition.

5. Let the fresh notice be issued to all the aforesaid authorities within a period of one week and the reply/reports be filed by all the authorities within a period of two weeks thereafter.

6. Ld. CGSC, Sh. Shivendra Bahadur on behalf of ROC and Ld. Proxy Counsel, Sh. Niraj Kr., on behalf of Sh. Gaurav Mahajan, Ld. Sr. Standing Counsel for the Income Tax Department are present, who accept notice, and therefore waive service on behalf of their respective parties.

7. It is specifically directed that the concerned authorities would also make their specific reports and replies to the amended application filed vide CA No.28/2023. The copies of which would also be supplied to the concerned authorities and the paper publications would be made as already ordered dated 30th May, 2023.

8. Let the matter to come up on 6th December, 2023.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

18th October, 2023

Priya Agarwal
(Stenographer)